

Neutral Citations

2025 CGHC 42467

Equivalent Citations

citation codes .

RAHUL DONGRE @ VIKKEY v. STATE OF CHHATTISGARH

Chhattisgarh High Court (Aug 21, 2025)

CASE NO.

MCRC/6101/2025

DISPOSITION

NA

ATTORNEY

2025:CGHC:42467

NAFR

HIGH COURT OF CHHATTISGARH AT BILASPUR

MCRC No. 6101 of 2025

Rahul Dongre @ Vikkey S/o Puran Lal Dongre Aged About 36 Years R/o Village Kudwa, District- Gondia Maharashtra,

... Applicant(s)versus

State Of Chhattisgarh Through - S.H.O. P.S. Khamhardih- Raipur District- Raipur (C.G.)

... Non-applicant

For Applicant : Mr. Abhishek Choubey, Advocate. For Non-applicant/State : Ms. Smriti Shrivastava, Panel Lawyer.

Hon'ble Mr. Ramesh Sinha, Chief JusticeOrder on Board

21/08/2025

1. This is the first bail application filed under Section 483 of BNSS for grant of regular bail to the applicant who has been arrested in connection with Crime No. 118/2025 registered at Police Station Khamardih, District- Raipur (C.G.) for the offence punishable under Sections 304(2), 3(5) of BNS.

2. Case of the prosecution, in brief, is that on 29.05.2025 at about 04:10 p.m when the complainant was in his *jwelry* shop at time three unknown person came in two wheeler motorcycle in which two people stand outside of the shop and one people came to shop and

ask complainant to show gold chain upon which complainant show him three gold chain and then suddenly that people took all three chain and fled away from his shop which amounting to four lakhs rupees. During the course of investigation, based on the information received from an informant, the suspects/accused Jai Patil, Rahul Lillare, and Rahul Dongre/applicant were interrogated and in their memorandum statements, they admitted to having jointly committed the *theft* of the said gold chain from the complainant's jewelry shop and stated that one gold chain was sold to the accused Rajesh Patil. During the investigation, on the basis of their memorandum statements, the accused were arrested and taken into custody.

3. Learned counsel for the applicant submits that the applicant is innocent and he has been falsely implicated in the instant case. He further submits that the applicant never committed any crime which is alleged against him in fact on the date of incident applicant never visited to the shop of complainant. Only on the basis of memorandum of co accused applicant has been implicated in the present case. He further submits that offence under Section 304 of B.N.S in which maximum punishment is provided for three years and trial will take time for the final disposal of the case and the applicant is aged about 36 years and is in jail since 05.06.2025 and his parents are old aged and depends on him and in the present case, there was no seizure made from the applicant and the applicant has only one criminal antecedent, which is still pending and explained in the bail application of para No.4(A) and charge sheet has already been filed therefore, he prays for grant of bail to

the applicant.

4. On the other hand, learned State counsel appearing for the respondent/ State opposes the bail application and submits that in the present case, charge-sheet has been filed before the competent Court and the applicant has one previous criminal antecedent, which is still pending moreover, the applicant along with other co-accused committed *theft* of jewellery of Rs. 04 lakhs from the complainant shop, ask him to show gold chain upon which complainant showed him three gold chain and then suddenly one of the accused persons took all three chain and fled away from his shop with other accused which amounting to four lakhs rupees. During the course of investigation, based on the information received from an informant, the suspects/ accused Jai Patil, Rahul Lillare, and Rahul Dongre/ applicant were interrogated and in their memorandum statements, they admitted to having jointly committed the *theft* of the said gold chain from the complainant's jewelry shop and stated that one gold chain was sold to the accused Rajesh Patil. During the investigation, on the basis of their memorandum statements, the accused were arrested, as such, the present applicant is not entitled for grant of bail.

5. I have heard learned counsel appearing for the parties and perused the case diary.

6. Taking into consideration the facts and circumstances of the case, nature and gravity of offence, period of detention of the applicant since 05.06.2025 and the fact that in the present case, charge- sheet has been filed before the competent Court and the applicant

has only one criminal antecedent, which is still pending and explained in the bail application of para No.4(A) and no seizure has been made from the present applicant and the trial is likely to take some time for its conclusion, therefore without further commenting anything on merits, I am inclined to grant bail to the applicant.

7. Let the applicant - **Rahul Dongre @ Vikkey**, involved in Crime No. 118/2025 registered at Police Station Khamardih, District- Raipur (C.G.) for the offence punishable under Sections 304(2), 3(5) of BNS, be released on bail on his furnishing a **personal bond** with

two sureties, in the like sum to the satisfaction of the Court concerned with the following conditions:-

(i) The applicant shall file an undertaking to the effect that he shall not seek any adjournment on the dates fixed for evidence when the witnesses are present in court. In case of default of this condition, it shall be open for the trial court to treat it as abuse of liberty of bail and pass orders in accordance with law.

(ii) The applicant shall remain present before the trial court on each date fixed, either personally or through his counsel. In case of his absence, without sufficient cause, the trial court may proceed against him under Section 269 of Bharatiya Nyaya Sanhita.

(iii) In case, the applicant misuses the liberty of bail during trial and in order to secure his presence, proclamation under Section 84 of BNSS. is issued and the applicant fails to appear before the court on

the date fixed in such proclamation, then, the trial court shall initiate proceedings against him, in accordance with law, under Section 209 of the Bharatiya Nyaya Sanhita.

(iv) The applicant shall remain present, in person, before the trial court on the dates fixed for (i) opening of the case, (ii) framing of charge and (iii) recording of statement under Section 351 of BNSS. If in the opinion of the trial court absence of the applicant is deliberate or without sufficient cause, then it shall be open for the trial court to treat such default as abuse of liberty of bail and proceed against him in accordance with law.

8. Office is directed to send a certified copy of this order to the trial Court for necessary information and compliance. diurt fo forthwith. - **S/- Sd/-**

(Ramesh Sinha)

Chief Justice

Kunal